

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT GENERALLY REVISING RULES RELATED TO MEETINGS OF
5 THE BOARD OF LAND COMMISSIONERS; REQUIRING 48-HOUR WRITTEN NOTIFICATION FOR
6 EMERGENCY MEETINGS; ALLOWING PUBLIC PARTICIPATION; PROVIDING FOR DELEGATION OF
7 PROXY VOTES; AND AMENDING SECTION 77-1-201, MCA."

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9 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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11 **Section 1.** Section 77-1-201, MCA, is amended to read:

12 **"77-1-201. Board -- meetings and officers -- procedure.** (1) The board shall hold regular meetings
13 at least once each month and may hold special meetings whenever considered necessary ~~upon call of~~ on 48-
14 hour written notice of the meeting to each member by the president or a majority at least two of the members.

15 (2) Three members of the board constitute a quorum for the transaction of business. The governor
16 is the president of the board. In the governor's absence, the lieutenant governor shall preside, and in the
17 lieutenant governor's absence, the superintendent of public instruction shall preside.

18 (3) The board shall enact and enforce the board's rules of procedure each biennium that are
19 available to the public and that:

20 (a) include an agenda item allowing public comment on any public matter that is not on the agenda
21 of the meeting and that is within the jurisdiction of the board;

22 (b) ensure the board makes an audio or video recording available online in real time when possible
23 and makes meeting recordings publicly available on the board's website within 2 business days of the meeting
24 date; and

25 (c) permit a board member to delegate in writing the performance of their board functions,
26 including the delegation of a proxy vote, by giving each member a 48-hour written notice of the delegation."

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